

MENDING THE SEGREGATION IN HEALTHCARE

A look into the American Medical Association

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Race: the fictional concept that divided Americans from skin to soul, leaving a legacy of discrimination and abuse of power within the American healthcare system. Throughout the history of America, racial divide has been significant in schools, government, and hospitals. In a profession where individuals are meant to assist and save lives, the stigma within race based treatment has prevented doctors from treating all Americans equally, resulting in higher mortality rates and fear of accessing healthcare by minority populations due to systematic stress factors stemming from historical mistreatment. In recent history, presidents have advocated for equality in healthcare, yet surprisingly, the largest opponent of universal healthcare was not the government, but rather the American Medical Association, who's doctors and physicians opposed assisting underprivileged communities for fear of losing their own income. Indeed, after slavery was abolished in 1865, the majority of underprivileged communities of color were denied their rights to healthcare, and faced discrimination not only from white physicians but also from state laws. Thus, the fight for morals-based equality within healthcare lasted until the late 1900's. In a profession stating the importance of taking care of one's self and others, discrimination based on race was so prominent that when Harry Truman proposed universal health care, corporations including the American Medical Association immediately fought the idea due to their fear of a powerful central government who would control a doctors practice and their income; nevertheless, a segregated healthcare system continues a lack of access to effective healthcare for minorities communities throughout the country.

During early colonial rule of America, indentured servants from Europe and African countries were oppressed by white men in power, leading to a 1667 rebellion causing

white men to frantically reconsider their laws and ways of ruling in order to better sustain their regime: a system enshrining the division of lower classes by race to prevent them from uniting against the state. Following Virginia's 1661 anti-miscegenation law, Maryland, prompted by the rebellion, banned all interracial marriages, preventing minority communities from working together to create a system of equality and limiting equal representation in society. Forbidding interracial couples created a superior race that could not be 'mixed' with another race to preserve the white purity. Black people were quickly looked down upon in society and later reduced to slaves and nothing more, causing Black people to be treated as property and not as humans.

The injustices within healthcare began in the era of slavery with doctors medically experimenting on enslaved individuals due to their misguided belief that Black people could not feel pain. White doctors, more often than not, got away with malpractice and were later praised for their experiments. Enslaved women were forced to take part in experiments that they had not consented to as permission was obtained from their masters. For example, James Marion Sims – widely considered the Father of Gynecology – performed experiments on at least “seven enslaved Black women and girls” between 1845 to 1849. One experiment on a young enslaved woman named Lucy, who “endured excruciating pain” on an “operation [that] failed,” nearly killed her due to Sims' lack of precautions. Only after he was sure that Black women could survive his new techniques did he practice on white women using anesthesia, exhibiting the lack of thought that Black women's lives were important though he did the same surgeries on both races. However, his refusal to use anesthesia “was based on his misguided belief that black people didn't experience pain like white people did,” a common myth which also led Black people to be forced into labor intensive jobs. Nevertheless, Sims continues to receive praise by a vast community of individuals. Despite being unsuccessful in his surgeries, Sims, in showing no remorse for his gross failure, demonstrated how pervasive the dehumanization of black women was in the medical world.

Following the 1865 passage of the 13th Amendment, in which slavery was abolished, Americans were divided even further through segregation and Jim Crow laws created by states populated by a majority African-American population, in fear that the white population would lose their power and status in controlling the government. Most, if not all, Black people in the south were forced to enter the field of sharecropping. In this system, land-owners received “half of the [cash crops]” and were able to keep the majority of the income whereas the Black farmers were placed into persistent debt. Because of this preven-

tative measure, individuals working on farms in the sharecropping system could not afford any sort of healthcare or medication to compensate for the rough conditions that they worked in. Additionally, if workers were sick they would not be able to miss a day's worth of work as missed labor would add to their debt. Through *Plessy v. Ferguson*, the United States Supreme Court declared that Americans could be "separate but equal," a statement that allowed for individual states to divide any public space they felt necessary. Up until the 1960's—before the second Civil Rights movement—hospitals in America were divided such that the care of white versus Black Americans was drastically different. Where white Americans had clean, spacious hospitals, Black Americans were "housed in basements or crowded into the halls. That everything in these hospitals [was] separate, except the sewage, they [allowed] that to flow together," exhibited that the divide was purely based on the fact that doctors did not want to treat those of different skin color even though they required the same procedures. Education for doctors was also separate, especially "in much of the South, [where] a...system of hospitals existed to serve black communities and as a place where black physicians could be trained and practice"; the limited number of physicians of color who were forced to form a mutual aid patchwork, whereas a historically large population of white doctors ensured steady white access to healthcare since long before the Civil War. In a time where Black physicians and their hospitals were limited, white doctors' prevention of treating people of color led to an increase of avoidable mortality. In 1931, for example, two Black women in Georgia who were involved in a car crash were "refused" by a local hospital due to their race before their injuries killed them. In 1915, Black male patients were not allowed to be treated by white nurses as Alabama passed a law that would make "it [...] unlawful for any white female nurse to nurse in wards or rooms in hospitals... [where] negro men are placed for treatment, or to be nursed." This law signifies that the government feared any discomfort or sexual harassment of white women yet did not protect, equally, Black women from white doctors who may also conduct any form of sexual misconduct. The 'colored' hospitals and their patients were extremely underfunded due to the lack of opportunities that the previously enslaved population faced, preventing sustainable healthcare.

Leading into the Gilded Age, Black people found themselves working for railroad companies, where they were forced to work more dangerous jobs and paid less leading to an economic lack of opportunities for populations of color. European co-workers with limited English language skills were paid more, signifying that the wage divide was not based on the immigration or linguistic skill of an individual, but purely on their race. Capitalist

railroad companies suppressed the rights of Black labor workers more frequently than they did the rights of white workers, forcing Black people to perform historically racist dances, serving food, and cleaning on the trains: a way of taking advantage of a train being the only safe way for a person of color to travel. To protect against the exploitation at the hands of capitalists, workers formed labor unions. However, the largest labor union was exclusively for all white workers and did not allow for Black laborers to join their agenda. This exclusion further pushed Black folks away from equality, even within the working class. It also led to Black people filling the vacant positions of white workers in companies, yet for a fraction of the pay as capitalists needed their factories to run and Black people needed jobs. Between the years of 1880 and 1900, the average life expectancy for Black people was 35 to 36 years old whereas for white Americans the expectancy was 39 to 40 years old, illustrating that through constraint of both healthcare access and financial discrimination, Black Americans were more likely to suffer in the so-called “pursuit of happiness”. Exclusionary care also extended to during health crises. For example, during a cholera epidemic in 1941, Black Americans in Philadelphia “suffered a case rate almost twice as great as that of whites.” The government’s resistance to provide more affordable protection led non-profit organizations such as the Alpha Kappa Alpha to provide stations for free dental and physical care in rural Black communities. Their mission was to “keep democracy alive... and to make democracy a reality in our nation,” where all citizens are granted the protection promised to them through representation, which was currently absent within the government system as white representatives were in power and would not advocate for rural communities of color.

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Following World War II, President Harry Truman devised a plan to create a universal healthcare system, instilling fear specifically in white doctors of becoming government-funded, which would prevent them from generating a larger income and bar them from exclusively treating the affluent patients like they preferred. Truman believed that more Americans could have fought in the American military but were not able to due to their lack of access to proper healthcare and nutrition. He stated the importance of “action to help them attain that opportunity and protection,” within healthcare moving beyond the scope of race base divide. Truman believed that his job as the president was to “represent the whole 155 million people- the people who haven’t any pull or lobby,” or in other words, those whose representatives are in a minority community and voices are oppressed in the Federal Government. In his 1945 speech to Congress, Truman stated the need for healthcare “regardless of residence, station, or race--everywhere in the United States,” and

though his motives originate from a war torn world, his goal would benefit an ongoing fight for equality. The major significance of mentioning race is that though the country believed they moved on from racial divide due to the abolishment of slavery, Truman was explicitly calling out white Americans for their discrimination. If all Americans had healthcare, there would be a higher probability of effective education for all citizens, pushing Americans to attend higher paying jobs. Within his speech, Truman addressed the rumors of his plan to “socialize the country,” a state of propaganda spread by the American Medical Association as they believed that “doctors would work as employees of the government.” However, much of the controversy in passing such a bill stemmed from the idea that “taxpayers’ money” would be used for “free services, free clinics, and public hospitals,” something that low wage earning Americans would not be able to afford nor a tax that wealthy Americans would find the need to pay for. The idea, which consolidated tax money spending power in the federal government, was immediately perceived as Communist and was thus received negatively in an early Cold War environment.

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The American Medical Association (AMA) strongly opposed universal healthcare, stemming from their fear of losing their monopoly which would lead to communist system in American healthcare; universal healthcare would make the medical field a low paying, public service profession. Wealthy white doctors controlling the AMA were treating proportionally wealthy patients, meaning that their income was also greater. The AMA portrayed accessible healthcare as “socialized medicine,” spreading fear that Americans would end up paying more in taxes to the government. Additionally, the AMA benefited from painting Truman’s party as “followers of the Moscow party line,” inserting fear in Americans that Truman would turn America into a communist country and therefore destroying the idea of competition in the economy and reducing Americans to poverty. Though the AMA seemed to have declared their opposition due to the government’s “attack” on the doctors “freedom,” the association also declared that free healthcare would lead to “lower standards of medical care, higher payroll taxes, [and] loss of incentive and damage to research,” meaning that many medicine related jobs would decrease and any research done would be as the government preferred. Thus, a larger financial burden would be placed on the doctors who would generate a smaller income then when they were able to charge their patients as they wished. Dr. Henderson Ewing from the AMA argued that the government was pursuing an “invasion of privacy” on the association and doctors who wanted to independently practice; many doctors of the AMA were supportive of all white chapters, creating a discriminative workforce, which would be abolished if the government forced

doctors to treat all patients equally. The National American Association, the all Black physician group, pushed for the “1948 Hill-Burton Hospital Survey and Construction Act” to create more resources for rural communities, such as hospitals. However, the AMA spent “\$1,110,000, the entire sum to be spent during two weeks in October ” for propaganda against the government, including newspaper and radio advertisements. This large sum of money could have been spent on “one year’s average medical costs for more than 160,000 families in the \$3,000-a year bracket.” The American Medical Association’s fight against universal healthcare is connected to their lack of inclusivity. Hardly any Black doctors were able to speak up for the conditions that they worked in as “only one black physician in the state had been admitted to its medical society,” restricting Black patient population and their healthcare predicament to be represented through the lack of resources. The AMA, though said to be an organization representing all doctors, kept the association segregated by allowing all white chapters, signifying their lack of wanting to empower Black doctors and listen to their voices, which in turn oppressed liberties of Black communities by restricting their representation and equal access to healthcare.

The American Medical Association, along with major capitalists in America, benefited from free healthcare being accessible only to white individuals working low paying jobs as it was a way to control labor in the country. Capitalists could warn white workers that if they were to leave their jobs, their spot could easily be replaced by a Black worker willing to be employed for a fraction of the cost due to the lack of jobs available to people of color. If an employer was to have provided healthcare benefits, “contributions for health benefit plans were generally tax deductible as a business expense and were to be excluded from employees’ taxable income,” meaning that the company owners would also take away a higher income that was not lost in taxes to the Federal Government. If universal healthcare became accessible, underpaid workers would leave their jobs and find new ways and resources to generate a larger income, and in doing so halt monopolies throughout the country. In 1946, a Sargent from Wisconsin wrote to Truman stating that Americans “do not feel that 4% salary deduction is the answer,” as a man who would be earning just \$3,600 a year would be forced to pay \$144 for healthcare, which they were not used to paying to the Federal Government. As the Declaration of Independence states, liberty, including the liberty to live a healthy life, is entitled to all Americans. Though Truman’s plan would benefit many Americans in poor working conditions, the flat tax it imposed would have disproportionately burdened low income families. The AMA and capitalists only offer healthcare if hired through underpaying, discriminatory jobs protecting the preferred white workers,

which left black folks unprotected within the healthcare system and workforce.

Contrary to the modern AMA's claim that "legally sanctioned racial segregation in hospitals ended with the Civil Rights Act of 1964," the effects of discrimination lasted through the 1964 Civil Rights movements till today. Additionally, the AMA still requires physicians to pay a fee in order to become a member of the organization, meaning that doctors in marginalized communities would find it difficult to join such an advocacy group and would not be able to advocate for underserved communities. Even during the first Civil Rights movement, advocates for equity questioned white doctors' silence. Even in factory jobs, it was not immigration status or lack of linguistic skills that prevented workers from equal pay by large companies, but simply deliberate and explicitly racial employment discrimination, which in turn led to inaccessible healthcare. Still today, Black women are "2 to 3 times more likely to die from a pregnancy related cause than white women." Due to redlining, the lack of access to "supermarkets with fresh and affordable food" have an impact today as communities of color are more likely to be disadvantaged, restricting their access to the improvement of health. Truman fostered a healthcare plan that would have matched America's global standings economically yet the societal discrimination and the inability to accept all people equally has held back Americans from being a land of all people.

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